



General Terms of Service

These General Terms of Service (“General Terms”) are a legal agreement between you, as a current or prospective User of Better’s services (“you,” “your”, “User”) and Better Financial Services Limited, (“Better,” “we,” “our” or “us”) and govern your use of Better’s services, including mobile applications, websites, software, hardware, and other products and services (collectively, the “Services”).

By signing up for an account or using any of the Services, you agree to these General Terms of Service and any policies referenced herein (“Policies”), including our Privacy Notice. You also agree to any additional terms specific to Services you use including services and products provided by a bank, financial institution, or other partners (“Service Partners”), subject to additional terms and conditions (“Additional Terms”), such as those listed below, which become part of your agreement with us (collectively, the “Terms”). If you are using the Services on behalf of a business or any other corporate entity, you represent to us that you have authority to bind that business or entity to these Terms, and that business accepts these Terms. Please read all of our Terms carefully and if you do not agree to any or all of these Terms. DO NOT USE THE SERVICES.

1. Account Registration

To access the Better Mobile Application (“the App”) and the Services, you will be required to provide certain registration details or other information which may include but is not limited to your name, bank account or card details, information about the location of your business, etc. You represent and warrant that all the information you provide will be correct, current and complete. If we believe that the information you provide is not current, incorrect, incomplete or misleading, we have the right to refuse you access to the Services and to terminate or suspend your access at any time. You may also be required to update your information from time to time in order to capture accurate data through an account upgrade feature which will be provided for users via the App

To use the App, you must provide your Bank Verification Number (BVN) and/ or any other valid means of identification (ID). The following items shall constitute sufficient proof of (ID): national ID card, driver’s licence or international passport if you are a Nigerian national; and original alien certificate, diplomatic ID or passport if you are a foreign national or any other valid means of ID as communicated by us from time to time.



Where an Account is opened without BVN or wrong BVN, such Account will be restricted until the BVN is provided and or updated on such Account. Better is required by the CBN to verify all BVN's collected. By giving Better your BVN, you authorise Better to collect and save your data from the BVN database as part of our KYC information to fulfil regulatory requirements. All KYC data collected will be treated as confidential. You also permit us to use your BVN to monitor, prevent and detect fraudulent activities and share the same with CBN authorised stakeholders and other regulatory and law enforcement organisations for the purpose of deterring financial fraud.

We reserve the right to screen all Users against applicable sanction lists and the BVN watchlist database and may decline account opening applications in the event they are found to be on any of the lists.

We may, at our sole discretion, reject any attempt to use the Services and resources if any of the requirements set out in these General Terms are not met or if you fail to provide us with satisfactory proof of ID.

We rely on the accuracy of the information you provide when opening and maintaining your Better Account/Wallet. You may be required to verify information previously provided or provide additional information in the course of applying for or receiving certain Services.

You acknowledge and agree that we may use and provide any data you provide to our partners and third-party service providers to validate the information you have provided and determine your eligibility for the Services, as described in the Privacy Notice. This validation may include sending a representative to your location or business address provided during onboarding.

2. Age of Users

To use the Service, you must be, and represent and warrant that you are 18 years and over and of legal competence to enter into a binding agreement with us and are not otherwise prohibited from using the App and Services in accordance with these terms and conditions or any relevant laws.

3. Service Description

1. The App permits registered Users to make a profit while performing financial transactions on behalf of members of the public including without limitation, transfers, withdrawals, airtime purchase, paying cable and electricity bills, using Better Wallets.



2. All transactions shall be denominated in Nigerian Naira and Kobo. The App may not recognize any other monetary value. You hereby agree to round off any transaction value to the nearest Nigerian currency.
3. Subject to the prescribed transaction limits and the provisions of these Terms and Conditions, the balance of your Better Wallet is redeemable at any time and shall be disposed of only in accordance with your instructions given via the App.
4. Better may in its absolute discretion, restrict or limit the number of Better Wallets that Users may operate at any one time. You acknowledge that Better is neither a bank nor a deposit-taking institution.

4. Transactions

After your Better Account/Wallet has been opened and activated, you will be able to initiate the transaction types as made available by Better from time to time ("Transactions") including the following:

1. Fund your Better Account/ Wallet through a debit card.
2. Send money to personal or third-party accounts from your Better Account/Wallet.
3. Withdraw cash from your Better Account/Wallet through participating ATM networks.
4. Purchase Prepaid Airtime.
5. Pay utility bills or make one-off or periodic payments or remittances to participating utility providers, financial institutions, charity organizations, etc.
6. Manage your Better Wallet (e.g., check balance inquiries, change PIN, etc.).
7. Any other Transactions may be introduced by Better from time to time.
8. You acknowledge that no interest will be paid on any funds held in your Better Account/Wallet.
9. Better does not warrant that all functionalities and or transactions on the App shall be available at all times. Better may withdraw any functionality and or transaction or the entire App as a direct result of new or amended legislation, statutory instrument, government regulations or policy or any other compelling reason.
10. Better may provide additional functionalities and or transactions on the App following integration with platforms of financial institutions and other entities providing you with specified services. Such functionalities may give you limited access to platforms of the financial institutions or other entities. By using such functionalities to gain access to other platforms, you hereby agree to indemnify Better against, and hold Better harmless from any losses arising from your access to such external platforms.

11. In the event of any review of our business planning, technical, public interest or operational reasons, changes within the industry, recommendations from regulatory bodies or similar events, Better may vary these terms and conditions, or policies affecting usage and shall notify you of such changes through appropriate means. Your continued use of the App shall be deemed to be your acceptance of all such varied terms and conditions or policies.
12. Transaction limits and charges as prescribed by Better shall apply each time you send money, pay bills or use other functionalities that effect the transfer of funds from your Better Account/Wallet.
13. Your transaction request will not be completed: We need to state the minimum trx daily
 1. If you have insufficient funds in your Better Account/ Wallet to complete the transaction and or to cover the charges for the transaction.
 2. If you have reached the daily limit prescribed by the App by virtue of applicable risk and KYC thresholds set by Better.
 3. If your Better Account/ Wallet has been suspended or permanently frozen on valid grounds.
 4. If there are any other compelling reasons such as temporary system delay or outage.
You will be charged a fee for any transactions you undertake on the App. The fee will be in accordance with the published tariffs.
 5. If the funds in your Better Account/Wallet are not sufficient to conduct your transaction (including covering the transaction cost) request in full, the transaction will not be completed, and no funds will be debited from your Better Account/Wallet.
 6. Where the App is unable to complete a transaction, you will be notified by way of a pop-up message on your mobile device.
 7. In the event that a transaction fails but your Better Account/Wallet is debited, you shall inform the Better customer support of this occurrence. Upon receipt of this report Better shall conduct an investigation and effect a refund to your Better Account/Wallet only where the failed transaction was occasioned by a glitch or technical failure of the App.
 8. A transaction once completed is final and irrevocable. As such, Better shall not be under any compulsion to reverse any transaction.



9. Better reserves the right, at its sole discretion, to cancel or reverse a transaction if reasonable grounds such as manifest error or fraud are shown and PROVIDED THAT the Recipient has not redeemed the funds covered by the transaction and the reversal claim is made within one (1) month of the erroneous transaction date.
10. Better shall not be compelled to refund or compensate the sender if the funds are sent to a recipient mistakenly or in error or fraudulently or under duress and you hereby agree to hold Better harmless for any losses arising from a mistaken, erroneous or fraudulent transfer of funds or any transfer of funds from your Better Account/Wallet effected under duress or under coercion or criminal force. Better shall, in its own accord, choose to aid this recovery by reaching out to the User credited erroneously without more. All refund shall be at the credited Users volition.

5. Restrictions

You may not, nor may you permit any third party, directly or indirectly, to use this service for unlawful purposes: You may use this Service only for lawful purposes and in accordance with Terms. You agree not to use this Service directly or indirectly:

1. In any way that violates any applicable national or international law or regulation.
2. In any way that infringes upon the rights of others, or in any way is illegal, threatening, fraudulent, or harmful, or in connection with any unlawful, illegal, fraudulent, or harmful purpose or activity.
3. To engage in any other conduct that restricts or inhibits anyone's use or enjoyment of Service, or which, as determined by us, may harm or offend Company or users of Service or expose them to liability.
4. In any manner that could disable, overburden, damage, or impair Service or interfere with any other party's use of Service, including their ability to engage in real-time activities through Service.
5. You also agree not to: access or monitor any material or information on our system using any manual process or robot, spider, scraper, or other automated means.
6. perform or attempt to perform any actions that would interfere with the proper working of the Services

If we reasonably suspect that your Better Account/Wallet has been used for an unauthorised, illegal, or criminal purpose, you give us express authorization to share information about you, your Better Account/Wallet, and any of your transactions with law enforcement.



6. Fraud Mitigation Measures

You agree to maintain a record sheet showing Identification details, phone numbers and addresses of clients for whom payments and bills are processed. Ensure that all required KYC information requested at sign up is accurately recorded, with clear pictures of the account owners. Noncompliance with this requirement may cause your account to be flagged as suspicious and placed on a fraud watchlist. You also acknowledge that you are required to flag and report in writing showing the phone numbers and destination account numbers of suspected initiators and beneficiaries any suspicious transaction that they may be forced to process at the nearest law enforcement office and provide us with a report of the same for our records.

7. Disclosure and Data Retention

You hereby expressly consent and authorise us to disclose any transaction data or information pertaining to your Better Account/Wallet to any law enforcement, investigative or regulatory authority including without limitation the Nigerian Police, Central Bank of Nigeria, Economic and Financial Crimes Commission, or any competent anti-money laundering authority for the purposes of any genuine enquiry or investigation or to any third party to which you have separately, either in writing or electronically through the Services or otherwise, authorised Better to disclose transaction data or information pertaining to you or your usage of the Services, including your Better Account/Wallet provided that any consent given to us to disclose information to any third party (not being a law enforcement, investigative or regulatory authority) pursuant to this clause may be withdrawn at any time.

You acknowledge that where your Better Account/Wallet is determined by a competent judicial authority as containing proceeds of any criminal or money laundering activities, Better may be required by law to surrender funds in your Better Account/Wallet to any statutory fund created for the purpose of recovering the proceeds of crime or to any other duly authorised account/beneficiary.

You acknowledge that we may retain your transaction data for a period of up to five (5) years or more.

8. Privacy, your content



We prioritise the protection of your privacy rights. We ensure our use of your personal data is in tune with regulatory prescription and global standards. Your use of the Services signifies your continuing consent to our Privacy Notice, which governs our collection and use of personal information that you supply to us. You can examine our Privacy Notice any time by clicking on “PRIVACY”. Better shall only divulge your information to a third party strictly in line with the NDPR 2019 regulation and only to third parties whose services are directly incidental to the services rendered to you by Better.

9. Proprietary Rights (Copyright and Trademark Infringement)

Using the Services does not give you ownership of or any rights to any materials, functionalities, operations and content on the Services, all of which are owned exclusively and reserved by us and protected by copyright and other intellectual property rights.

Trademarks, service marks, and logos appearing on the Services are the property of Better or the party that provided the trademarks, service marks, and logos to Better and any party that provided trademarks, service marks, and logos to Better retain all rights with respect to any of their respective trademarks, service marks, and logos appearing on the Services.

You acknowledge and will respect all such copyright and other intellectual property rights we own or may own in the look and feel of the Service including the App and its contents including any text, graphics, data, stills, photographs and moving images. You further agree that you will not infringe our copyright by any method or manner now known or as may exist in the future.

10. Security

We have implemented technical and organisational measures designed to secure your personal information from accidental destruction, loss, alteration and from unauthorised access, use, alteration, or disclosure. However, we cannot guarantee that unauthorised third parties will never be able to defeat those measures or use your personal information for improper purposes. You provide your personal information at your own risk.

Access to your Better Account/Wallet is password protected. You hereby agree to guard your PIN and not to disclose it to any third-party including staff of Better or any person purporting to have authority to request for it.



You hereby agree to guard and are solely responsible for safeguarding your password and for restricting access to the Services from your compatible mobile devices and computer(s). You will immediately notify us of any unauthorised use of your password or Better Account/Wallet.

You acknowledge that you shall be solely responsible for the security of your PIN. Better shall not be liable for any disclosure of your PIN to any third party and you hereby agree to hold Better harmless from any losses that may result from any PIN disclosure.

You are responsible for all instructions given to Better in relation to your Better Account/Wallet.

We shall deem each correct PIN/ password entry as being performed by the legitimate owner of the Better Account/Wallet and shall regard all subsequent transactions as validly performed by you

You will immediately take all reasonable steps to mitigate the effects of a security breach and will cooperate with Better and provide all information requested by Better to remediate the breach. Any assistance provided by Better in relation to a security breach does not in any way operate as acceptance or acknowledgement that Better is in any way responsible or liable to you or any other party in connection with such breach.

You are prohibited from using any services or facilities provided in connection with the Services to compromise security or tamper with system resources and/or Better Accounts. The use of tools designed for compromising security (e.g., password guessing programs, cracking tools, or network probing tools) is strictly prohibited. If you become involved in any violation of system security, Better reserves the right to release your details to system administrators in order to assist them in resolving security incidents.

Better reserves the right to investigate suspected violations of these terms and conditions.

11. Electronic Consent, Delivery of Notices and Communications

You agree that submitting your application for a Better Account and indicating your agreement to these General Terms of Use electronically during the application process constitutes your electronic signature to this General Terms of Use. You also agree that your electronic consent has and will have the same legal effect as a physical signature. By agreeing to the terms of the Platform Agreement, you consent to us providing Notices and account statements to you electronically and understand that this consent has the same legal effect as a physical signature.

You agree that we may provide disclosures and notices required by law and other information about your Better Account to you electronically, by posting it on our website, pushing notifications through the



Services, or by emailing it to the email address listed in your Better Account or that you otherwise provided to Better. Electronic disclosures and notices have the same meaning and effect as if we had provided you with paper copies. Such disclosures and notices are considered received by you within twenty-four (24) hours of the time posted to our website, or within twenty-four (24) hours of the time emailed to you unless we receive notice that the email was not delivered. If you wish to withdraw your consent to receiving electronic communications, contact Better Support. If we are not able to support your request, you may need to terminate your Better Account.

12. Fees

You are responsible for the payment of all applicable fees. All charges applicable to the use of the Services are as may be communicated to you from time to time by Better and are subject to change at any time at Better's sole discretion.

All fees are deducted at source and are subject to change at any time at Better's sole discretion.

Fees payable on each transaction will be deducted from your Better Account/Wallet at the completion of each transaction. Your new balance on completion of the transaction shall be notified to you by SMS.

13. Taxes

Taxes include any and all present or future taxes, charges, fees, levies or other assessments except withholding tax, imposed by any domestic or foreign taxing authority ("Taxes").

14. Promotions

Any contests, prize draws, or other promotions (collectively, "Promotions") made available through Service may be governed by rules that are separate from these Terms of Service. If you participate in any Promotions, please review the applicable rules as well as our Privacy Notice. If the rules for a Promotion conflict with these Terms of Service, Promotion rules will apply.

15. Amendments, Modification, Suspension and Termination

We reserve the right at our sole discretion to suspend or terminate the agreement if you use the Service for unauthorised purposes.



You acknowledge that we may be compelled by law to suspend and/or freeze your Better Account/Wallet or decline to execute your transaction requests if there are reasonable grounds to suspect that your account with us has been or is being or may be used to receive or send funds in connection with any criminal or fraudulent activity.

We may, at our discretion, close your account with us at any time for any reason upon giving one (1) weeks' notice to you and making reasonable attempts to reach you. In such circumstances, you shall be entitled to the balance of any funds remaining in your Better Account/Wallet.

We may send notices to you at any postal address provided by you or electronically by SMS to your mobile telephone number with which you registered on the App.

This agreement terminates automatically upon the death of the User who has signed up to use the App.

You may also terminate the General Terms and Additional Terms applicable to your Account by deactivating your Account at any time

16. Effect of Termination

You may also terminate the General Terms and Additional Terms applicable to your Account by deactivating your Account at any time.

If these General Terms or your Better Account is suspended, deactivated or terminated or for any reason:

1. All rights granted under these Terms including your right to use your Better Account will end,
2. You agree to immediately terminate your use of all Services,
3. We may (but have no obligation to) delete your information and account data stored on our servers, and
4. We will not be liable to you or any third party for compensation, reimbursement, or damages for any termination or suspension of the services, or for deletion of your information or account data. In addition to any outstanding payment obligations, the following sections of these General Terms survive and remain in effect in accordance with their terms upon termination.

17. Ownership and License



Better owns all Better Property. We grant you a limited, non-exclusive, revocable, non-transferable, non-sublicensable licence to use the Paid Services, and a royalty-free, limited, non-exclusive, revocable, non-transferable, non-sublicensable licence to use the Services as authorised in these General Terms. We may make updates to the Services available to you, which you must accept to continue using the Services. Any such updates may be subject to additional terms made known to you at that time. This licence terminates upon termination of this General Terms of Use unless terminated earlier by us.

We will not share any Company Data with third parties for marketing unaffiliated products without your consent, but may use Company Data to identify Services, Third-Party Services, and programs that we believe may be of interest to you, including as part of a rewards or benefits program.

You grant Better a worldwide, irrevocable licence to use, modify, distribute, copy, and create derivative works from Company Data for the purposes identified in this General Terms of Use.

18. Indemnity

You hereby agree to indemnify and hold us, our parent, subsidiaries and affiliated companies and their respective directors, officers, employees and representatives, harmless from any and all claims, liabilities, litigations, costs and expenses (including but not limited to attorney fees) that you or any third party assert, or may assert, based on or relating to your use, or use by any individual using your PIN in accessing the Services.

Disclaimers and Warranties

THE CONTENT OF THIS APP AND THE SERVICES ARE PROVIDED “AS IS” AND WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESSED OR IMPLIED. WE DISCLAIM ALL WARRANTIES, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, OR NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE FUNCTIONS OR CONTENT CONTAINED IN THIS APP WILL BE INTERRUPTED OR ERROR-FREE, THAT DEFECTS WILL BE CORRECTED, OR THAT THIS SITE OR SERVER THAT MAKES IT AVAILABLE IS FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. WE DO NOT WARRANT OR MAKE ANY REPRESENTATION REGARDING USE, OR THE RESULT OF USE OF THE CONTENT IN TERMS OF ACCURACY, RELIABILITY, OR OTHERWISE INCLUDING THE CONTINUOUS, UNINTERRUPTED OR SECURE ACCESS TO THE APP, WHICH MAY BE AFFECTED BY FACTORS OUTSIDE Better’S CONTROL OR MAY BE SUBJECT TO PERIODIC TESTING,



REPAIR, MAINTENANCE OR UPGRADES. THE CONTENT MAY INCLUDE TECHNICAL ERRORS AND THE COMPANY MAY MAKE CHANGES, OR IMPROVEMENTS AT ANY TIME. YOU, AND NOT US, ASSUME THE ENTIRE COST OF ALL NECESSARY SERVICING REPAIR OR CORRECTION IN THE EVENT OF ANY LOSS OR DAMAGE ARISING FROM THE USE OF THIS APP OR IT'S CONTENT. WE MAKE NO WARRANTIES THAT YOUR USE OF THE CONTENT WILL NOT INFRINGE THE RIGHTS OF OTHERS AND ASSUME NO LIABILITY OR RESPONSIBILITY FOR ERRORS OR OMISSIONS IN SUCH CONTENT.

The relationship of Better and the User established by this Agreement is that of independent contractors, and nothing contained in this Agreement shall be construed to:

1. Give either party the power to direct and control the day-to-day activities of the other,
2. Constitute the parties as partners, joint ventures, co-owners or otherwise as participants in a joint or common undertaking, or
3. Allow either party to create or assume any obligation on behalf of the other party for any purpose whatsoever.
4. You understand that we cannot and do not guarantee or warrant that our App or content made available thereon will be free of any viruses, worms, Trojans horses, or other codes that may manifest contaminating or destructive properties. You are responsible for implementing sufficient procedures and checkpoints to satisfy your particular requirements for accuracy of data input and output, and for maintaining a means external to this site for this reconstruction of any lost data. We do not assume any responsibility or risk for your use of the internet.
5. The content, features and functionalities on the App are not necessarily complete and up to date and should not be used to replace any written reports, statements, or notices provided by us.

19. Limitation of Liability

Better will not be responsible for any claims whatsoever arising from your use of the App. Better specifically disclaims all liability for any damages or losses, including, without limitation, direct, indirect, consequential, special, incidental or punitive damages deemed or alleged to have resulted from or caused by but not limited to:

1. Transactions made to unintended recipients or payments made in incorrect amounts due to the input of incorrect information by you.
2. Transactions made from your Better Account/Wallet by an unauthorised third party who passes all identity and verification checks.
3. Any fraud, deception, or misrepresentations by you.
4. Any damages resulting from a recipient's decision not to accept a transaction made by you through the App.
5. Failure of any other telecommunications or data transmission system other than the App.
6. Any result of any acts of government or authority, any act of God or force majeure.
7. You shall not assert claims for monetary or other damages arising from the App, your use thereof or its contents, facilities, or functionalities. We shall not be liable for any indirect, special, incidental, consequential, or exemplary damages whatsoever including loss of revenue, or income, pain, and suffering, emotional distress, or similar damages, resulting from the use of this App, even if we knew or should have known of the possibility of such damage.
8. You understand and accept that to the fullest possible extent permitted in law, we accept no responsibility for any loss or damage, or injury caused to you or your hardware or software whether we cause such loss or injury directly or indirectly.

20. Compliance With Applicable Laws, Regulations and Court Orders

If we are notified of or become aware of a summons, court order or other legal process or request (e.g. subpoenas, garnishments, levies, warrants) or if we otherwise believe we are required to do so in order to comply with applicable law or regulatory requirements, we may take certain actions, including without limitation providing information in our possession, custody, or control to comply with orders, subpoenas, or other requests for information; holding payments to/from your Better Account/Wallet or holding or otherwise restricting funds in your Better Account/Wallet; or suspending, terminating, closing, or limiting access to your Better Account/Wallet. We will decide, in our sole discretion, which action is required or appropriate. We do not have an obligation to contest or appeal any court order or legal process involving you or your Better Account/Wallet. We are not responsible to you for any losses or consequences you sustain due to actions we may take to comply with a legal order, legal process or request, or applicable



law. We may, but are not required to, provide you with Notice of any court order, legal process or requests, or actions we may take in conjunction with them.

21. Governing Law and Dispute Resolution

These terms and conditions will be governed and interpreted pursuant to the laws of the Federal Republic of Nigeria. Any and all disputes, claims or litigation arising from or related in any way to this Terms, or any provisions herein will be resolved by mediation at the Lagos Multi Door Court House, Lagos State, Nigeria. Where such dispute persists, it shall then be resolved by Nigerian Courts in Lagos State. The parties hereby waive any objections against and expressly submit to the exclusive jurisdiction of the Nigerian Courts in Lagos State.

22. Limitation on Time

Any action or proceeding by you relating to any dispute in respect of the Services must commence within one year after the cause of action accrues.

23. Third Party Services

All third-party products and services included or sold with the Services are provided solely according to the warranty and other terms specified by the third-party service provider, who is solely responsible for service and support for its product. For service, support, or warranty assistance, you should contact the manufacturer directly, you may also contact us, and we will refer your request to the third party service provider. Better MAKES NO REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, WITH RESPECT TO SUCH THIRD-PARTY PRODUCTS AND SERVICES, AND EXPRESSLY DISCLAIMS ANY WARRANTY OR CONDITION OF MERCHANTABILITY, NON-INFRINGEMENT, OR FITNESS FOR A PARTICULAR PURPOSE.

24. Third Party Beneficiaries/ Rights of Third Parties

These terms and conditions are between you and us and not any third party, and these terms and conditions are not intended to confer any rights of any nature upon any party other than you and us and our legal associates.

25. Miscellaneous and Other Provisions



1. In using the Services, you agree you will comply with all applicable laws and regulations.
2. We may revise these General Terms of Use at any time by updating this posting.
3. We reserve the right in our sole discretion to deny you or any other User access to the App without notice and to decline to provide use of the Services to any User that is in breach of these terms and conditions.
4. We shall not be liable to you for any breach of these Terms and Conditions or any failure to provide or delay in providing any service through the App or any other channel resulting from any event or circumstances beyond our reasonable control including without limitation, strikes, fire, explosion or accident, breakdown of systems or network access.
5. The enforceability or otherwise of any provisions of these General Terms of Use shall not affect the enforceability of the rest of these terms and conditions.
6. This Agreement will not be assignable or transferable by you. You acknowledge that you are an independent agent and Better shall not be liable for your acts or omissions.

Point of Sale Terminals

Terms of Service

These POS Terms and Conditions (POS Terms and Conditions) constitute a legally binding agreement made between you, whether personally or on behalf of an entity (“you”/ “the User”) and Better Financial Services Limited (“Better”, “we,” “us” or “our”), concerning your access to and use of our Terminal. You agree that by accepting these terms, you have read, understood, and agree to be bound by all of these Terms and Conditions. Better may revise these Terms and Conditions of Use at any time by updating this posting.

1. Definitions

1. User(s) means a person or entity who successfully subscribes to the Application. The term User shall include the said User's personal representatives, successors in title and assigns as well as persons acting with the User's authority such as servants or employees.
 2. Users Locations means the physical location or place used by the User to conduct business as stated in User's biodata information.
 3. Users Wallet means a digital account on the Better Mobile Application that, when funded, allows the User to access the Services.
 4. Agreement means these POS Terms and Conditions.
 5. Application means the Better Mobile Application
 6. Card Holder means an individual or company issued with a payment card linked to an account at a licensed financial institution who uses the card to carry out a transaction on the Terminal(s).
 7. Commencement Date means the date the Terminal(s) is linked to the User's Wallet.
 8. "Better", "we", "us", "our" means Better Financial Services Limited and where applicable, its employees, officers and authorized agents.
 9. Caution Fee means the POS Lease fee as communicated by us from time to time and paid by the User before the issuance of Terminal(s) CBN means the Central Bank of Nigeria.
 10. Return Fee/ Depreciation Fee means the fee payable for the value of the POS device minus all of the accumulated loss in usage. Depreciation fee is calculated from the receipt of the Terminal and at:
 - a. Month 1 - 75%
 - b. Month 2 - 50%
 - c. Month 3 - 25%
 11. Hot list means list of deactivated cards that were reported missing, stolen, lost or damaged by the card holders.
 12. Issuing Bank means Banks or financial institutions that have issued payment cards to their customers.
 13. Lease Application means the request for a POS initiated by a User via the Application Payment Card Any debit card issued by any Financial Institution in Nigeria.
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14. Payment Terminal Service Aggregator/PTSA means the Nigeria Inter-Bank Settlement System, the entity mandated to, among others, act as the Automated Clearing House and payment terminal service aggregator and the Central Switch for Nigeria.
15. Payment Terminal Services Provider/PTSP means a CBN licensed entity responsible for the deployment, maintenance, and support of payment terminals on behalf of acquiring banks.
16. POS Point of sale terminal.
17. POS Lease means an arrangement whereby the User 'leases' the POS terminal from Better and subject the payment of the Caution Fee as stipulated/ communicated from time to time via the Application.
18. Terminal(s) means the point-of-sale devices running on the approved software supplied by the Company to the User to facilitate payments at the User's Locations.
19. Transactions means all transactions done through the point-of-sale terminal.

2. Services

Better may in its absolute discretion, and subject to the Lease Application by a User, deploy its Terminals to the User as it deems fit. Better may lease a Terminal to a User subject to the fulfillment of the prerequisites as communicated to the User from time to time including but not limited to set transaction thresholds and the payment of the lease sum.

Better may also at his discretion and subject to additional terms and condition distribute its POS through designated partners and aggregators subject to additional terms and the payment of the Lease sum by the said partner

3. Ownership

The Terminal(s) remain the property of Better, but the responsibility for the Terminal shall remain with the User irrespective of the caution fee paid by the User.

Terminals received by a User through any designated partner in Clause 2 above may be returned through the designated partner or directly to Better. Notwithstanding Better shall not be liable to



any such User in lease fees not directly paid to it and consequently the relevant clauses on Depreciation and Return Fee may not be applicable

The User must obtain a Terminal Received Voucher (TRV) from Better certifying the condition of the Terminals upon return/surrender of the Terminal(s) to Better.

Where the User obtains a TRV from Better certifying that the Terminal(s) returned/surrendered is in good condition, Better shall pay the Return Fee paid by the User subject to depreciation and logistics costs. Depreciation is calculated from the receipt of the Terminal and as specified above i.e. Month 1 at 75%, Month 2 at 50% and Month 3 at 25%. For clarification purposes, a User shall not be entitled to any Return Fee after four months from the receipt of the Terminals.

4. Point Of Sale (POS)/Transaction Fees

The transaction fees payable by the User shall be a percentage of each Transactions or a flat fee per Transaction as decided by Better and communicated from time to time

The transaction fee shall be paid to Better and this will be directly deducted from the User's Wallet with Better.

The transaction fees payable by the User may vary subject to the transaction sum.

5. Terminal Location

The Terminal(s) shall be used and located only at the User's site(s) stated in the User's biodata information as the User's primary or secondary location or as communicated to Better in writing from time to time.

The User must at all times know the location of the Terminal(s). Better shall conduct spot checks to ensure this condition is adhered to. Any re-locations must be approved by Better in writing.

Subcontracting of Terminals to third parties is strictly prohibited, and Better shall only recognize the registered/ Mapped User.



Better reserves the right to immediately retrieve/recover all of its Terminals should the Terminal be subcontracted to a third party, be used at any other site or location contrary to the location stated herein or be used for any business other than as expressly permitted by this POS Terms and Conditions

6. User's Obligations

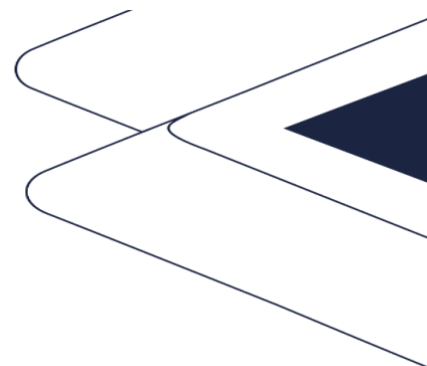
As regards each POS Device the User shall:

1. Promptly honor, without discrimination, all valid Payment Cards.
2. Be authorized to refuse to accept payment by means of an electronic payment instrument, including payment with cards, if: the electronic payment instrument is invalid; a notification of loss, missing, stolen or damaged has been made of the electronic payment instrument; the cardholder refuses to present a document confirming his/her identity in the event of suspicious / unauthorized use of electronic payment instruments.
3. Reject any unsigned electronic payment card for Transactions.
4. Ensure valid identification cards under the Know Your Customer (KYC) Policy document (i.e., National Identification Card, Driving License, International Passport) are obtained from customers for Transactions in excess of N200,000.00 (Two Hundred Thousand Naira only) or its equivalent in any currency.
5. Check card security features prior to completing any Transaction. Such check shall include but not be limited to comparing card number on the card with the card number on the POS receipt or voucher.
6. Keep for not less than 120 days or such other period as Better may stipulate from time-to-time details of all Transactions and documents including but not limited to receipts, personal identification etc. related to the cardholder and the Transactions and upon the request of Better provide within 7 days from the date of such request such details and documents.
7. In case of failure, refusal or neglect to provide such details and documents for any reason whatsoever upon the request of Better, the User hereby indemnifies Better against all losses, claims, demands, liabilities, actions, proceedings, damages, cost, fees and expenses arising as a result of noncompliance and shall be bound to pay Better the amount or value of any such

losses, claims, demands, liabilities, actions, proceedings, damages, cost, fees and expenses costs including attorney or solicitors fees.

8. The User shall ensure Terminals shall only be operated by staff nominated and authorized by the User.
9. The Users' customers shall not in any way be permitted to operate the Terminal.
10. The User shall report all suspicious Transactions to Better not later than 12 hours after the same or before 12 noon on the next working day.
11. The User shall display the payment device conspicuously enough for the cardholder to observe the amount entered into the device before the cardholder enters his/her PIN and shall ensure that the "card never leaves sight of cardholder" rule is strictly observed.
12. Unless otherwise specified, the User agrees to retain and provide, at Better's request, copies of all Sales and Credit Slips and all Card Transactions' records.
13. The User shall be required to take good care of the Terminal and keep it away from any possible contact with fluids, food or materials which may damage its functionality and immediately notify Better if the POS Terminal is damaged or stolen.
14. The User will be liable for the full repair or replacement costs of a Terminal that is damaged, lost or misplaced whilst in the Users' custody, as result of the Users negligence and subject to the provision of section 3(c) above. A schedule of costs is available from Better upon request.
15. The User shall allow Better, and parties authorized by Better to have access to the Terminal for routine support, repair and or replacement.
16. The User shall ensure that Terminals are not used for fraudulent activities and shall be held liable for frauds arising from its negligence or connivance.
17. The User shall ensure that Terminals are carefully maintained and secured against damage and theft in locations.
18. The User shall not tamper with the hardware or application loaded on the Terminal.
19. Where the Terminal is damaged beyond repair within one (1) year of deployment, the User shall bear the cost of replacement, subject to the provision of sections 3 and 6(7) above.

7. Card Fraud



In the event of a valid fraudulent Transaction claim, the User would be charged 105% of the value of the claim if the User is found to be negligent in the area of enforcing cardholder identification at the point of receiving the cardholder's payment card to be used on the Terminal.

In the event of a valid fraudulent Transaction claim, if the User is found to have connived with the perpetrator(s), the User would be reported to the law enforcement agencies and/or blacklisted from Transactions by the Better/ any financial institution or/ and regulatory authorities or all the penalties stated in this section.

Better may freeze the User's account in an event where a fraudulent Transaction is reported on the POS Terminal deployed to the User's location.

8. Obligation of Better

Ensure that the Terminals are connected directly to the Payments Terminal Service Aggregator.
Perform prompt settlement of the User.

Ensure that, subject to the filling of appropriate forms required for Agent registration/onboarding, a match check is conducted on the User to verify a good track record before the User is issued a POS.
Provide continuous training of the User on Terminal usage at the User's locations.

9. Terminal Support Services

Hardware technical support and services shall be carried out by Better's technical department.
All Terminal repairs shall be done on a carry-in basis.

the User may call for hardware support by dialing our customer care numbers 08185974129 or sending the email to support@betterng.com.

10. Term, Termination and Retrieval

These terms and conditions shall be deemed effective and in full force from the date of Activation of the Terminal.





You may also terminate this Agreement at any time by deactivating your Account with us and returning the Terminal.

The Terminal is, and will at all times be and remain, the sole and exclusive property of Better. Better reserves the right to withdraw or repossess the POS from the User without prior notice or liability for any reason whatsoever, including without limitation if you breach any of the terms. In addition to the above, Better reserves the right to recall non-performing Terminal(s) and/or give the notice to terminate the contract with Users holding non-performing Terminal(s). Such Terminals should be returned by the User within 30 calendar days

If these Agreement or your Account with us is terminated or suspended for any reason: (a) the rights granted under these Agreement will end, (b) you agree to immediately terminate and cease use of the Terminals, (c) we may (but have no obligation to) delete your information and account data stored on our servers, and (c) we will not be liable to you or any third party for compensation, reimbursement, or damages for any termination or suspension of use of the Terminals, or for deletion of your information or account data. In addition to any payment obligations under this Agreement, the following sections of these Agreement shall survive and remain in effect in accordance with their terms upon termination: 6[Users Obligations], 7[Card Fraud], 12 [Indemnification]; 13[Assignment]; 15[Governing Law]; 16[Dispute].

11. Encumbrances

The User will not grant any security interest in the Terminals to a third party, and will specifically exclude it from any equipment, fixture, floor or blanket secured financing and will otherwise keep it free and clear of all levies, liens and encumbrances, including any that may arise from Agent's failure to pay any assessments, taxes or similar governmental charges.

12. Indemnification

In consideration of the Services offered by Better the User hereby irrevocably and unconditionally undertakes and covenants that it shall at all times hereafter well and truly indemnify Better and keep Better fully indemnified against all losses, claims, demands, liabilities, actions, proceedings, damages, cost, fees and expenses which may be occasioned to Better in consequence of



1. The User's failure to comply with or to enforce any provision of this Agreement.
2. Any loss if fraud precautions are not taken by the User.
3. Any loss in the case of any Transaction in which a Card was not presented; and
4. Any loss caused by the User's violation of Card Schemes' rules or regulations or the laws of the Federal Republic of Nigeria or of any other country.

13. Assignment

This Agreement and any rights and licenses granted hereunder, may not be transferred or assigned by you /the User and any attempted transfer or assignment will be null and void.

14. Amendment

These POS Terms and Conditions shall be read in conjunction with the Terms and Condition of the Application where applicable.

These POS Terms and Conditions may be reviewed and re-negotiated in the light of changing market conditions. Therefore, this contract is subject to periodic updates. Supplemental terms and conditions or documents that may be posted on the Application from time to time are hereby expressly incorporated herein by reference. We reserve the right, in our sole discretion, to make changes or modifications to these Terms and Conditions at any time and for any reason. We will alert you about any changes by updating the "Last updated" date of these Terms and Conditions and you waive any right to receive specific notice of each such change. It is your responsibility to periodically review these Terms and Conditions to stay informed of updates. You will be subject to, and will be deemed to have been made aware of and to have accepted, the changes in any revised Terms and Conditions by your continued use of the Application after the date such revised Terms are posted.

15. Governing Law

These terms and conditions will be governed and interpreted pursuant to the laws of the Federal Republic of Nigeria.



16. Dispute

Any and all disputes, claims or litigation arising from or related in any way to this Terms, or any provisions herein will be resolved by mediation at the Lagos Multi Door Court House, Lagos State, Nigeria. Where such dispute persists, it shall then be resolved by Nigerian Courts in Lagos State. The parties hereby waive any objections against and expressly submit to the exclusive jurisdiction of the Nigerian Courts in Lagos State.

By Accepting these Terms and Conditions/ Agreement, You/ the User hereby irrevocably indemnifies Better and its Affiliates against any losses, damages, penalties, fines or otherwise, both direct or indirect, that it may suffer as a result of your/ the User's use and/or misuse of the Terminals.